

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUOE040692: MICHAEL JOYCE vs SIMI CDJR, A CALIFORNIA
CORPORATION, et al.**

08/25/2026 in Department 43

Motion for Leave to File a Cross-Complaint

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized

Motion: Defendant/Cross-Complainant Simi CDJR's Motion for Leave to File Cross-Complaint

Tentative Ruling: Defendant/Cross-Complainant Simi CDJR's Motion for Leave to File Cross-Complaint is GRANTED.

Per Code Civ. Proc. §§ 426.10(c), 426.30, and 426.50, if the proposed claims principally arise from the same employment relationship underlying Plaintiff's Complaint and are sufficiently logically related to Plaintiff's claims to be treated as compulsory cross-claims, leave should be granted. In this case, both pleadings concern Plaintiff's duties and conduct as Simi CDJR's General Manager, payroll and commission practices, his October 2024 discipline and suspension, his subsequent leave and resignation, and the parties' respective obligations arising from the employment relationship. Even assuming that one or more of the proposed claims is permissive rather than compulsory, leave is independently appropriate in the interest of justice under Code Civ. Proc. § 428.50(c).

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Simi CDJR did not delay asserting the proposed claims in bad faith. Defendant's possession of the underlying business records, and the fact that the motion followed the parties' agreement to mediate, warrant consideration but, on the present record, they do not establish the type of tactical or deliberately prejudicial conduct sufficient to deny leave under Code Civ. Proc. § 426.50. Defendant has submitted evidence that investigation of the alleged misconduct began during Plaintiff's leave, continued following his March 2025 departure, and required a forensic accounting concerning allegedly concealed bad debt and inflated commission calculations. The anticipated need for additional discovery does not justify denial at this stage. Trial is presently set for March 8, 2027, and the parties will be able to conduct discovery concerning the cross-claims.

Simi CDJR shall file and serve the proposed Cross-Complaint attached as Exhibit A to its motion September 5, 2026.

Moving party is ordered to serve notice of the Court's ruling.